

José Pérez
10 Oak Ave
Los Angeles, CA 90001

Date: _____

U.S. Immigration and Customs Enforcement
Attn: Civil Fines
500 12th St. SW, Mail Stop 5202, Room 11078
Washington, DC 20536-5202

Sent by USPS Certified Mail No. _____

RE: Notice of Appeal and Written Defense

Name: José Pérez
File No.: A# 123-456-789
Penalty Tracking Number: P2026-00012345
Notice of Violation and Order dated September 28, 2026

Dear Sir or Madam:

I am appealing the Notice of Violation and Order dated September 28, 2026 (Penalty Tracking Number P2026-00012345). I deny the violation, and I do not admit that I owe this fine.

Enclosed is my Pro Se Written Defense, Answer, and Brief in Opposition, signed under penalty of perjury. Please consider it my written defense and part of my appeal.

I also request copies of pertinent documentation and records relevant to the penalty, under 8 C.F.R. § 281.1(e)(3).

Please send all letters about this matter to me at the address above.

Sincerely,

José Pérez

Enclosures:

1. Pro Se Written Defense, Answer, and Brief in Opposition
2. Certificate of Translation
3. Notice of Appeal page from the Notice of Violation and Order (filled out and signed)
4. Copy of the Notice of Violation and Order

In the Matter of	}	
<u>José Pérez</u>		
Respondent		File No. A# 123-456-789

**PRO SE WRITTEN DEFENSE, ANSWER, AND BRIEF IN OPPOSITION TO
IMPOSITION OF CIVIL PENALTY AND NOTICE OF VIOLATION AND
ORDER**

I hereby declare under penalty of perjury, pursuant to 28 U.S. Code § 1746:

- Also, the fine was issued to me more than five years after the removal order, so the fine is barred by the statute of limitations.

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8. No one ever warned me, including the immigration judge, that I could be fined for not leaving the United States. The immigration judge granted me voluntary departure. I was never warned that I could face daily fines under INA § 274D. I am on an Order of Supervision with U.S. Immigration and Customs Enforcement (ICE). I have gone to all of my ICE check-ins. I was in ICE's Alternatives to Detention program (ISAP), which included an ankle monitor. After the removal order, I was held in jail, prison, or immigration detention for a period of time, and I could not leave the United States on my own during that time. This was in 2020. I applied for Temporary Protected Status (TPS). It was approved. I have been using the legal process available to me. I have not willfully refused to leave the United States.

9. I have lived in the United States since 2008. My family depends on me. This includes my spouse or partner and my two children (one of them is a U.S. citizen). I work as a construction worker. I earn about \$2,000 per month. After I pay for rent, food, and other basic needs, I have no money left over. I have no savings. I file taxes in the United States.

10. I understand that I may have defenses against the Fines, including:

- a. The Fines in the Notice violate the Excessive Fines Clause of the Eighth Amendment to the U.S. Constitution.
- b. The Notice violates the guarantee of Due Process in the Fifth Amendment to the U.S. Constitution, in different possible ways, which may include things such as:
 - i. I do not meet the legal requirements to be fined.
 - ii. I was never warned that I might face Fines like these.
 - iii. DHS has provided no evidence with their Notice, and this keeps me from being able to respond in a meaningful way.
 - iv. The Notice does not itemize the fines, and does not say when my alleged willfulness began, and this keeps me from being able to respond in a meaningful way.
 - v. The Notice refers to defenses but does not say what factors would be considered for any defenses that I might have. This keeps me from being able to raise my defenses in a meaningful way.
 - vi. The decisions about the Fine were not made by a neutral fact finder. Instead, they were made by DHS, which is the same agency making the accusations against me, and which would also be the same agency deciding any appeal. This is fundamentally unfair.
- c. The Notice violates my Seventh Amendment right to trial by jury by imposing civil penalties intended to punish me, and by doing so without a jury trial about

whether I am liable for knowingly violating the law.

- d. DHS is intentionally inflicting emotional distress on me through the Notice, by levying excessive, punitive, and grossly disproportionate Fines against me, and doing so with all the constitutional violations that I have listed here.

11. If DHS decides to fine me anyway, in spite of all the things I have said here, then the fines should be minimal because of mitigating factors in my case.

12. For all these reasons, DHS should withdraw the Fine in my case. If it fails to do so, it should at least significantly mitigate that Fine and impose only a minimal fine instead.

13. For the various violations of my rights detailed above, I reserve the right to bring legal actions under any applicable federal laws to protect my rights.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Today's date: _____

My City and State: Los Angeles, CA

Signature

José Pérez

Printed Name

10 Oak Ave

Address, Line 1

Los Angeles, CA 90001

Address, Line 2

CERTIFICATE OF TRANSLATION

I, Ana Ruiz, hereby declare that I am competent to translate between the Spanish and English languages. On _____, I read and translated aloud the foregoing PRO SE WRITTEN DEFENSE, ANSWER, AND BRIEF IN OPPOSITION TO IMPOSITION OF CIVIL PENALTY AND NOTICE OF VIOLATION AND ORDER to José Pérez, and believe that José Pérez understands the contents thereof.

Pursuant to 28 U.S.C. § 1746, I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on: _____

Signature of Translator

Ana Ruiz

Printed Name

5 Elm St

Address, Line 1

Los Angeles, CA 90002

Address, Line 2